# Submission to Joint Standing Committee

# on

# Electoral Matters

# re

# Inquiry into the 2025 Federal Election

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## October 2025

### Purpose

Oh for the days when Australia was bold and progressive!

The purpose of the submission is to ensure that elections make our parliament more representative of the people while allowing governments to get on with their job of governing.

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## Summary

Politicians, being human, will act in their own interests, including the interests of their party. This is why we have a Constitution that sits above them, with its words able to be changed only by a referendum of the people .

This submission addresses the composition of the Parliament as a whole, including the length of the parliamentary term, the potential for fixed terms, the number of elected representatives relative to the growth in population and the electorate, and several related matters.

The best voting system in the world is the single transferable vote version of proportional representation because it allows all voters to vote for candidates in any order they wish and for the result to be highly representative of how they voted within any electorate.

A truly inclusive society will do all it can to encourage and support effective participation in elections by all citizens.

Governments need time to implement their promises and to respond thoughtfully to the circumstances they face without the distraction of having to concentrate on the next election.

Governments call early elections because they think doing so is advantageous to them because the polls look good or they know there is disaster around the corner.

Having longer terms for the Senate than the House of Representatives smooths out temporary enthusiasms.

This submission supports (with constitutional changes in *italics*):

- *Constitutional entrenchment of the single transferable vote for Senate elections,*
- *Constitutional entrenchment of the single transferable vote for House of Representatives elections*,
- The restoration of group voting tickets for Senate elections,
- *Fixed four-year terms for the House of Representatives*,
- *Fixed eight-year terms for the Senate*,
- Retention of the Senate's power to deny Supply,
- *A replacement of the double dissolution provision with a referendum in the case of a disputed bill*,
- *A "pressure relief valve" allowing early elections in extreme circumstances but only for the remainder of the fixed term*,
- *Recall by petition*,
- Retention of the nexus between the number of members of the House of Representatives and the number of senators,
- An increase in the number of territory senators,
- Stricter requirements for party registration and nominations,
- Legislation requiring all party pre-selections to be determined by the votes of party members and, if such exist, of members of organisations affiliated with the party,
- A website to allow the voter to check the formality of the intended vote and to print a personal how-to-vote card.

## 1. A more democratic Senate

An electoral system should be fair and equitable; i.e., it should ensure:
* that the elected body is as representative as possible of the way the voters vote;
* that as many voters as possible have a vote that counts towards the result;
* that no group can win a majority of positions without first winning a majority of the vote;
* that all voters are treated equally; and
* that all voters are treated honestly.

The only electoral system that can meet all five criteria is the single transferable vote version of proportional representation, though whether or not it does so depends on the particular features a jurisdiction adds to it; e.g., banning multi-party group voting tickets makes the system less representative and less voter-friendly but is not as bad as banning proportional representation completely.

The Australian Senate has been elected by the single transferable vote version of proportional representation since 1949, but that method is not required by the Constitution. Even worse, Section 7 of the Constitution allows parliament to divide each state into a number of separate electorates; e.g., six electorates each returning one senator at each election. Such a move would cut minor parties out of representation and disenfranchise about one third of voters.

It is possible that a nasty government may one day gain a majority in the Senate and legislate a different electoral system; e.g., the truly appalling system that applied early in the last century and produced the following results:
in 1910, the Liberal Party won 45.6 per cent of the vote and no seats, while the ALP won 50.3 per cent of the vote and all 18 seats (Table 1);
in 1913, the Liberal Party won 49.7 per cent of the vote and 7 seats, while the ALP won 48.8 per cent of the vote and 11 seats (Table 2);
in 1914, in a double dissolution election, the Liberal Party won 47.8 per cent of the vote and 5 seats, while the ALP won 52.1 per cent of the vote and 31 seats (Table 3, page 5);
in 1917, the Nationalist Party won 55.4 per cent of the vote and all 18 seats, while the ALP won 43.7 per cent of the vote and no seats (Table 4, page 5).

**Table 1. 1910 Senate Election Results**

| Party | Vote | Seats Won | Seats Percent | (Distortion) |
|---|---|---|---|---|
| Liberal Party | 45.6 per cent | 0 seats | 0 per cent | (45.6 per cent underrepresented) |
| ALP | 50.3 per cent | 18 seats | 100 per cent | (49.7 per cent overrepresented) |
| Others | 4.1 per cent | 0 seats | per cent | (4.1 per cent underrepresented) |
| | | Total distortion | | 99.4 per cent |

(http://psephos.adam-carr.net/countries/a/australia/1910/1910senate1.txt, 9/10/2025)

**Table 2. 1913 Senate Election Results**

| Party | Vote | Seats Won | Seats Percent | (Distortion) |
|---|---|---|---|---|
| Liberal Party | 49.4 per cent | 7 seats | 38.9 per cent | (10.5 per cent underrepresented) |
| ALP | 48.7 per cent | 11 seats | 61.1 per cent | (12.4 per cent overrepresented) |
| Others | 2.1per cent | 0 seats | 0.0 per cent | ( 2.1 per cent underrepresented) |
| | | Total distortion | | 25.0 per cent |

(http://psephos.adam-carr.net/countries/a/australia/1913/1913senate1.txt, 9/10/2025)

**Table 3. 1914 Senate Election Results**

| Party | Vote | Seats Won | Seats Percent | (Distortion) |
|---|---|---|---|---|
| Liberal Party | 47.8 per cent | 5 seats | 13.9 per cent | (33.9 per cent underrepresented) |
| ALP | 52.1per cent | 31 seats | 84.1 per cent | (32.0 per cent overrepresented) |
| Others | 0.1per cent | 0 seats | 0.0 per cent | (0.1 per cent overrepresented) |
| | | Total distortion | | 66.0 per cent |

(http://psephos.adam-carr.net/countries/a/australia/1914/1914senate1.txt, 9/10/2025)

**Table 4. 1917 Senate Election Results**

| Party | Vote | Seats Won | Seats Percent | (Distortion) |
|---|---|---|---|---|
| Nationalists | 55.4 per cent | 18 seats | 100.0 per cent | (45.6 per cent overrepresented) |
| ALP | 43.7 per cent | 0 seats | 0.0 per cent | (43.7 per cent underrepresented) |
| Others | 0.9 per cent | 0 seats | 0.0 per cent | (0.9 per cent underrepresented) |
| | | Total distortion | | 90.2 per cent |

(http://psephos.adam-carr.net/countries/a/australia/1917/1917senate1.txt, 9/10/2025)

Despite the equal number of senators for each state, STV has ensured that the Senate is more representative than the House of Representatives of the way people vote, ever since its introduction in 1949. For example, in the 2025 election, Labor won 62.7 per cent of the seats in the House of Representatives for 34.6 per cent of the vote, the Coalition won 28.7 per cent of the seats for 33.6 per cent of the vote, the Greens won 0.7 per cent of the seats for 12.2 per cent of the vote, and others won 8.0 per cent of the seats for 19.6 per cent of the vote (Table 11, page 8), while Labor won 40.0 per cent of the seats in the Senate for 35.1 per cent of the vote, the Coalition won 32.5 per cent of the seats for 29.5 per cent of the vote, the Greens won 15.0 per cent of the seats for 11.7 per cent of the vote, and others won 12.5 per cent of the seats for 23.7 per cent of the vote (Table 10, page 6). Even though the abolition of multi-party group voting tickets has produced a distortion in the Senate, it is still less than that in the House of Representatives.

In the 1970 Senate election, Labor won 40.6 per cent of the seats for 38.9 per cent of the vote, the Coalition won 43.8 per cent of the seats for 42.2 per cent of the vote, the DLP won 9.4 per cent of the seats for 11.1 per cent of the vote, and others won 6.3 per cent of the seats for 8.5 per cent of the vote (Table 5).

**Table 5. 1970 Senate Election Results**

| Party | Vote | Seats Won | Seats Percent | (Distortion) |
|---|---|---|---|---|
| Coalition | 38.9 per cent | 14 seats | 43.8 per cent | (4.9 per cent overrepresented) |
| ALP | 42.2 per cent | 13 seats | 40.6 per cent | (1.6 per cent underrepresented) |
| DLP | 11.1 per cent | 3 seats | 9.4 per cent | (1.7 per cent underrepresented) |
| Others | 8.5 per cent | 2 seats | 6.3 per cent | (2.2 per cent underrepresented) |
| | | Total distortion | | 10.4 per cent |

(http://psephos.adam-carr.net/countries/a/australia/1970/1970senate1.txt, 8/10/2025)

In the last fully democratic Senate election, in 2013, Labor won 30.0 per cent of the seats for 29.6 per cent of the vote, the Coalition won 42.5 per cent of the seats for 37.0 per cent of the vote, the Greens won 10.0 per cent of the seats for 9.2 per cent of the vote, and others won 17.5 per cent of the seats for 24.2 per cent of the vote (Table 6). The reduction in representation of the others in subsequent elections is exactly what the abolition of multi-party group voting tickets was designed to do – and it has been an absolute undemocratic success, as can be seen

by comparing the 2013 Senate results (Table 6, page 6) with the 2016, 2019, 2022 and 2025 results (Tables 7-10).

**Table 6. 2013 Senate Election Results**

| Party | Vote | Seats Won | Seats Percent | (Distortion) |
|---|---|---|---|---|
| Coalition | 37.0 per cent | 17 seats | 42.5 per cent | (5.5 per cent overrepresented) |
| ALP | 29.6 per cent | 12 seats | 30.0 per cent | (0.4 per cent overrepresented) |
| Greens | 9.2 per cent | 4 seats | 10.0 per cent | (0.8 per cent overrepresented) |
| Others | 24.2 per cent | 7 seats | 17.5 per cent | (7.7 per cent underrepresented) |
| | | Total distortion | | 14.4 per cent |

(http://psephos.adam-carr.net/countries/a/australia/2013/2013senate1.txt, 18/9/2019)

**Table 7. 2016 Senate Election Results**

| Party | Vote | Seats Won | Seats Percent | (Distortion) |
|---|---|---|---|---|
| Coalition | 35.1 per cent | 30 seats | 39.5 per cent | (4.4 per cent overrepresented) |
| ALP | 29.8 per cent | 26 seats | 34.2 per cent | (4.4 per cent overrepresented) |
| Greens | 8.7 per cent | 9 seats | 11.4 per cent | (2.7 per cent overrepresented) |
| Others | 26.4 per cent | 11 seats | 14.5 per cent | (11.9 per cent underrepresented) |
| | | Total distortion | | 23.4 per cent |

(http://psephos.adam-carr.net/countries/a/australia/2016/2016senate1.txt, 26/9/2022)

**Table 8. 2019 Senate Election Results**

| Party | Vote | Seats Won | Seats Percent | (Distortion) |
|---|---|---|---|---|
| Coalition | 38.0 per cent | 19 seats | 47.5 per cent | (9.5 per cent overrepresented) |
| ALP | 28.8 per cent | 13 seats | 32.5 per cent | (3.7 per cent overrepresented) |
| Greens | 10.2 per cent | 6 seats | 15.0 per cent | (4.8 per cent overrepresented) |
| Others | 23.0 per cent | 2 seats | 5.0 per cent | (18.0 per cent underrepresented) |
| | | Total distortion | | 36.0 per cent |

(http://psephos.adam-carr.net/countries/a/australia/2019/senate.txt, 18/9/2019)

**Table 9. 2022 Senate Election Results**

| Party | Vote | Seats Won | Seats Percent | (Distortion) |
|---|---|---|---|---|
| Coalition | 34.2 per cent | 15 seats | 37.5 per cent | (3.3 per cent overrepresented) |
| ALP | 30.1 per cent | 15 seats | 37.5 per cent | (7.4 per cent overrepresented) |
| Greens | 12.7 per cent | 6 seats | 15.0 per cent | (2.3 per cent overrepresented) |
| Others | 23.0 per cent | 4 seats | 10.0 per cent | (13.0 per cent underrepresented) |
| | | Total distortion | | 26.0 per cent |

(http://psephos.adam-carr.net/countries/a/australia/2022/senate.txt, 26/9/2022)

**Table 10. 2025 Senate Election Results**

| Party | Vote | Seats Won | Seats Percent | (Distortion) |
|---|---|---|---|---|
| Coalition | 29.5 per cent | 13 seats | 32.5 per cent | (3.0 per cent overrepresented) |
| ALP | 35.1 per cent | 16 seats | 40.0 per cent | (4.9 per cent overrepresented) |
| Greens | 11.7 per cent | 6 seats | 15.0 per cent | (3.3 per cent overrepresented) |
| Others | 23.7 per cent | 5 seats | 12.5 per cent | (11.2 per cent underrepresented) |
| | | Total distortion | | 22.1 per cent |

(http://psephos.adam-carr.net/countries/a/australia/2025/2025senate1.txt - 28/9/2025)

The single transferable vote is the best voting system because it allows all voters to vote for candidates in any order they wish and for the result to be highly representative of how they

voted within any electorate. If a voter's first choice is not elected, the vote is not wasted. It moves to the second choice, then the third choice and so on. In a five-member electorate, the quota would be 16.67 per cent, meaning that at least 83.35 per cent of votes would count towards the result and no more than 16.65 per cent of the votes would be "wasted". In a six-member electorate, the quota would be 14.29 per cent, meaning that at least 85.74 per cent of votes would count towards the result and no more than 14.26 per cent of the votes would be "wasted". In a seven-member electorate, the quota would be 12.51 per cent, meaning that at least 87.57 per cent of votes would count towards the result and no more than 12.43 per cent of the votes would be "wasted". In an eight-member electorate, the quota would be 11.12 per cent, meaning that at least 88.96 per cent of votes would count towards the result and no more than 11.04 per cent of the votes would be "wasted". In a nine-member electorate, the quota would be 10.01 per cent, meaning that at least 90.09 per cent of votes would count towards the result and no more than 9.91 per cent of the votes would be "wasted". By contrast, in a single-member electorate, as many as 49.99 per cent of the votes can be "wasted" under preferential voting and many more under first past the movable post.

Various list systems are sometimes advocated instead of STV, but they do not allow the preferential choice of individual candidates. Closed list systems are unconstitutional as Section 7 of the Constitution requires that senators be "directly chosen by the people of the State". Even open list systems are arguably unconstitutional on the same grounds. It is possible to amend the Constitution to remove the requirement that senators be "directly chosen by the people", but that would be a backward step and doomed to failure in a polity that has rejected all five attempts to amend the Constitution to downgrade the Senate (1967, 1973, 1977, 1984, 1988).

There are arguments against all forms of proportional representation, such as the need for a government to have a stable majority so it can govern and the dangers of too much fragmentation in the legislature. The first does not apply to the Senate as it as house of review, not a house of government. The second involves balance. The number of senators elected at each election in each state puts some restraint on fragmentation as a candidate requires a quota, currently 14.29 per cent, to be elected, so that groups with very little support cannot succeed. Also, a certain degree of fragmentation is reality in the public. It is not democratic to completely wash that out of the system.

In conclusion, the committee should recommend that the Constitution be amended to entrench the single transferable vote version of proportional representation for Senate elections:
"7. The Senate shall be composed of senators for each State, directly chosen by the people of the State, voting, ~~until the Parliament otherwise provides~~, *by the single transferable vote version of proportional representation as described in the Election Method Schedule* as one electorate."
~~9. Method of election of senators~~
~~The Parliament of the Commonwealth may make laws prescribing the method of choosing senators, but so that the method shall be uniform for all the States. Subject to any such law, the Parliament of each State may make laws6 prescribing the method of choosing the senators for that State.~~
A schedule outlining the details of STV should be added to the Constitution (Appendix 1: Election Method Schedule, page 28).

## 2. A much more democratic House of Representatives

The House of Representatives has been elected by preferential voting since 1918, but there is no constitutional requirement for this.

While preferential voting is far more democratic than first-past-the-movable-post in that no one can win a seat without winning the support of the majority of votes in the electorate, it produces results that can be wildly disproportionate to the votes received by the parties and can deny minor parties any representation at all. In the 1958 election, for example, the Coalition won 63.1 per cent of the seats for 46.4 per cent of the vote, Labor won 36.9 per cent of the seats for 42.9 per cent of the vote, the DLP won 0.0 per cent of the seats for 9.4 per cent of the vote, and others won 0.0 per cent of the seats for 1.3 per cent of the vote (http://psephos.adam-carr.net/countries/a/australia/1958/1958reps1.txt – 27/9/2025). In 1983, the Coalition won 40.0 per cent of the seats for 43.7 per cent of the vote, Labor won 60.0 per cent of the seats for 49.5 per cent of the vote, the Australian Democrats won 0.0 per cent of the seats for 5.0 per cent of the vote, and others won 0.0 per cent of the seats for 1.9 per cent of the vote (http://psephos.adam-carr.net/countries/a/australia/1983/1983reps1.txt – 27/9/2025).

Again, there are arguments against all forms of proportional representation, such as the need for a government to have a stable majority so it can govern and the dangers of too much fragmentation in the legislature.

The first of the arguments is strong, but it runs up against declining support for the major parties. You might argue that only 6.9 per cent of voters were denied any representation in the House of Representatives in 1983 and that, even so, they were represented in the Senate. However, in the 2025 election, Labor was way over-represented in that it won 62.7 per cent of the seats in the House of Representatives for only 34.6 per cent of the vote, while the 31.8 per cent of the voters who voted for the Greens and others were way under-represented in that they won only 8.7 per cent of the seats. (Table 11). Labor has almost twice as many seats as its vote would support, while others have only just over one quarter of the seats that their vote would support. To break the last point down, the Greens have less than one tenth of the seats that their vote would support and, while the others have close to half, if you separate the others into "teals" and the rest, the "teals" are over-represented and the rest are under-represented. It is true that the Greens and the others are well represented in the Senate – though in the case of the others, not as well as they would have been had multi-party group voting tickets not been abolished – but the under-representation in the House of Representatives is much worse than it was in 1958 and 1983.

**Table 11. 2025 House of Representatives Election Results**

| Party | Vote | Seats Won | Seats Percent | (Distortion) |
|---|---|---|---|---|
| Coalition | 33.6 per cent | 43 seats | 28.7 per cent | (4.9 per cent underrepresented) |
| ALP | 34.6 per cent | 94 seats | 62.7 per cent | (28.1 per cent overrepresented) |
| Greens | 12.2 per cent | 1 seats | 0.7 per cent | (11.5 per cent underrepresented) |
| Others | 19.6 per cent | 12 seats | 8.0 per cent | 11.6 per cent underrepresented) |
| | | Total distortion | | 56.1 per cent |

(http://psephos.adam-carr.net/countries/a/australia/2025/2025senate1.txt, 9/10/2025)

There are people who don't want "extremists" represented at all. There are two problems with this attitude. Firstly, for some voters, the Greens candidates are the extremists, while for others Pauline Hanson's One Nation candidates are the extremists. It is not a feature of democratic

electoral systems that they deny representation to voters because other voters despise them. Secondly, the denial of representation to voters on whatever the current fringe is pushes them away from the democratic process altogether into real extremism.

In two-party systems, the two parties function to aggregate different views on the left and the right – two concepts that have moved dramatically over the centuries – into reasonably coherent wholes. This works when almost the entire population lines up on one side or the other. It does not work when one third of the population refuses to do so – and that is where we are today. The House of Representatives needs to make room for that third.

This brings us to the second argument against proportional representation, the dangers of too much fragmentation. This argument has greater strength for the House of Representatives than for the Senate because the House of Representatives is the house of government. Again, it is a question of balance. If the number of MPs elected from each electorate were five, the quota would be 16.67 per cent, putting some restraint on fragmentation as groups with very little support could not be elected.

In conclusion, the committee should recommend that the Constitution be amended to entrench the single transferable vote version of proportional representation for House of Representatives elections:
"24. The House of Representatives shall be composed of members directly chosen by the people of the Commonwealth *by the single transferable vote version of proportional representation as described in the Election Method Schedule*, and the number of such members shall be, as nearly as practicable, twice the number of the senators.
The number of members chosen in the several States shall be in proportion to the respective numbers of their people, and shall, until the Parliament otherwise provides, be determined, whenever necessary, in the following manner:
(i) a quota shall be ascertained by dividing the number of the people of the Commonwealth, as shown by the latest statistics of the Commonwealth, by twice the number of the senators;
(ii) the number of members to be chosen in each State shall be determined by dividing the number of the people of the State, as shown by the latest statistics of the Commonwealth, by the quota; and if on such division there is a remainder greater than one-half of the quota, one more member shall be chosen in the State;
*(iii) the number of members to be elected from each electorate in each state shall be five, except that one electorate in each state may have fewer than five members in order that the total number of members to be elected from each state remains as determined by (ii) above.*"
A schedule outlining the details of STV and elaborating on (iii) above should be added to the Constitution. (Appendix 1: Election Method Schedule).
Alternatives to (iii) above may be considered; e.g., allowing a state with 11 members to have two four-member electorates and one three-member electorate or one five-member electorate and two three-member electorates. But, in order to reduce fragmentation, no six-member electorates would be allowed.

## 3. Putting the voter first

Voting is the duty of every citizen in a democracy and is therefore compulsory. Furthermore, in the case of the single-member electorates of the House of Representatives, it is compulsory to mark a preference for every candidate. The law does not allow a citizen to refuse to vote because none of the candidates is suitable. Similarly, it does not allow a citizen to refuse to

mark a preference because none of the remaining candidates is suitable. It is not permissible to refuse to vote because neither Brown nor Bugati, the only two candidates, is acceptable to a citizen. Similarly, it is not permissible to refuse to mark a second, third, fourth, fifth or whatever preference because neither Brown nor Bugati, the only candidates remaining in the contest at that stage, is acceptable to a citizen. Compulsory voting means the compulsory marking of preferences. It follows that at every stage of the count, there is a set number of candidates remaining to choose from. The compulsion to choose at each stage is no different from the compulsion to choose in the first place.

For all sorts of reasons, the ideal is not the reality. Candidates with absolutely no chance of election stand in party groups in order to pad out the numbers. Voters can't be bothered to study the politics and character of all the candidates, understandably when there are 100 or more clogging the Senate ballot paper. It therefore falls to the law-makers to devise a voting system that makes it easier for voters to study each candidate and for them to express a vote that counts. It is therefore necessary to put reasonable limits on the process of nomination and on the number of preferences a voter must mark, while it is essential to allow the marking of all preferences if a voter wishes to do so.

There is superficially attractive but illogical argument made that the number of compulsory preferences should equal the number of seats to be filled. This seems to be based on the belief that each voter is electing six candidates in a six-seat electorate, but the voter is electing precisely one candidate. There is absolutely no reason in principle or mathematics that suggests the number of compulsory preferences should equal the number of seats to be filled.

The earlier votes become "exhausted" in the single transferable vote system of proportional representation, the less proportional the system becomes and later seats are filled by people who do not even reach a quota. In the Victorian Legislative Council, where that rule applies, parties typically run five candidates (the number of seats to be filled) even though they have no hope of winning five. This locks up below-the-line votes inside the party and means the above-the-line group voting ticket has more influence on the result.

The mathematics are complex, but the figures above show that it is the number of candidates on the ballot paper and not the number of positions to be filled to be filled that determines the rate at which votes become exhausted. (See Appendix 4: The Maths of Compulsory Preferences, page 30, for a comprehensive discussion.) It would be impractical in the extreme to vary the number of compulsory preferences from election to election and state to state and territory to territory on the basis of the number of candidates running each time in each jurisdiction. It is much easier to encourage a formal vote by lots of people if the number of compulsory preferences is the same from election to election and state to state and territory to territory.

Preferences should not be locked up inside one party. The reason they should not be locked up is that they would end up playing no role in the result. If the number were too low, you could still see the micro-party candidates elected, not from low primary votes as in 2013/14, but from low final votes because preferences would be exhausted early and the winner of the final position would become truly random. If the number were too high, the informal vote would be high. A balance is needed between the two competing imperatives – the need to keep a proportional system and the need to maximise the formal vote. Setting 12 as the minimum number of preferences below the line is reasonable.

There is absolutely no justification for making votes that have only one preference formal. It is a dereliction of a citizen's duty not to express preferences, particularly when we have a perfectly effective method, group voting tickets, to assist those reluctant to vote below the line. It would also lead to a less proportional and, thus less representative, result.

The number of preferences required for the Senate should also be applied to the House of Representatives for consistency, though if it is high, it will have no practical effect given that House of Representatives seats do not attract dozens of candidates. The states should also amend their laws to require the same 12 preferences in elections for both Houses and for local councils. Having the same voting system for the marking of preferences in all jurisdictions and for both Upper and Lower Houses and for local councils, boards of directors, etc, would reduce confusion and increase the formal vote.

Australia has compulsory voting so that parliament represents every citizen. However, some citizens have difficulty in completing a formal vote, even when there are only a few candidates to mark. That is why the wonderful innovation of multi-party group voting tickets was introduced in 1984. This enables citizens to easily cast a formal vote in the preference order that their party believes is best. This system cut the informal vote and thus gave more Australians a say in the results. It worked uncontroversially for decades – until the "wrong" people won, and then an emotive and illogical campaign began to ensure those who voted for the "wrong" people would not be represented and that only the "right" people would be. Multi-party group voting tickets were banned and replaced by single-party group voting tickets. It was apparently a bad thing that voters could mark the number 1 above the line for an order of candidates in different parties but perfectly fine that they mark the number 1 above the line for an order of candidates in the same party.

The widespread complaint after the 2013 Senate election was that candidates like Ricky Muir had been elected from minuscule primary votes. Yet this complaint was not heard at all in elections before 2004 (in which Family First's Steve Fielding won a seat from a primary vote of 1.9 per cent) or in the 2013 election about major party senators also elected on minuscule votes. The outrage was not coming from the one quarter of Australians who voted for micro-party candidates. An examination of the Senate results reveals that most major party candidates were elected from tiny primary votes and that some were elected without reaching a quota.

In the 2013/14 Senate election, six micro-party candidates were elected from tiny or just smaller than usual primary votes: David Leyonhjelm (LDP), Ricky Muir (MEP), Glenn Lazarus (PUP), Zhenya Wang (PUP), Bob Day (FFP), Jacqui Lambie (PUP) (Table 12, page 12). Outrage greeted these successful micro-party candidates, even though they were not elected until they reached a quota. In the 2013/14 Senate election, 16 established party candidates were elected from tiny primary votes: Doug Cameron (ALP), John Williams (NP), Arthur Sinodinos (LPA, Scott Ryan (LPA), Jacinta Collins (ALP), James McGrath (LNP), Matthew Canavan (LNP), Claire Moore (ALP), Michaelia Cash (LPA), Linda Reynolds (LPA), Simon Birmingham (LPA), Catrina Bilyk (ALP), David Bushby (LPA) (Table 13, page 12). No outrage greeted the election of any of these major party candidates even though their primary vote percentages were less in every case than those of the successful micro-party candidates.

In the 2016 Senate election, 44 established party candidates were elected from tiny primary votes (Table 15, page 13). No outrage greeted the election of any of these major party

candidates even though their primary vote percentages were less in every case but three than those of the successful micro-party candidates in 2013/14.

In the 2019 Senate election, 16 established party candidates were elected from tiny primary votes (Table 17, page 14). No outrage greeted the election of any of these major party candidates even though their primary vote percentages were less in every case but one than those of the successful micro-party candidates in 2013/14.

In the 2022 Senate election, 15 established party candidates were elected from tiny primary votes (Table 19, page 15). No outrage greeted the election of any of these major party candidates even though their primary vote percentages were less in every case but one than those of the successful micro-party candidates in 2013/14.

In the 2025 Senate election, 13 established party candidates were elected from tiny primary votes (Table 21, page 16). No outrage greeted the election of any of these major party candidates even though their primary vote percentages were less in every case but two than those of the successful micro-party candidates in 2013/14.

**Table 12. 2013/14 Micro-party Victors from Tiny Primary Votes**

| | Primary Vote | Vote on Victory |
|---|---|---|
| David Leyonhjelm (LDP) | 9.50 per cent | 14.93 per cent |
| Ricky Muir (MEP) | 0.50 per cent | 14.48 per cent |
| Glenn Lazarus of the PUP) | 9.86 per cent | 15.58 per cent |
| Zhenya Wang (PUP) | 12.23 per cent | 15.80 per cent |
| Bob Day (FFP) | 3.75 per cent | 17.40 per cent |
| Jacqui Lambie (PUP) | 6.47 per cent | 16.49 per cent |

**Table 13. 2013/14 Established Party Victors from Tiny Primary Votes**

| | Primary Vote |
|---|---|
| NSW | |
| Doug Cameron (ALP) | 0.04 per cent |
| John Williams (NP) | 0.02 per cent |
| Arthur Sinodinos (LPA) | 0.03 per cent |
| Victoria | |
| Scott Ryan (LPA) | 0.02 per cent |
| Jacinta Collins (ALP) | 0.05 per cent |
| Queensland | |
| James McGrath (LNP) | 0.02 per cent |
| Matthew Canavan (LNP) | 0.01 per cent |
| Claire Moore (ALP) | 0.08 per cent |
| Western Australia | |
| Michaelia Cash (LPA) | 0.04 per cent |
| Linda Reynolds (LPA) | 0.05 per cent |
| South Australia | |
| Simon Birmingham (LPA) | 0.10 per cent |
| Tasmania | |
| Catrina Bilyk (ALP) | 0.20 per cent |
| David Bushby (LPA) | 0.40 per cent |

**Table 14. 2016 Micro-party Victors from Tiny Primary Votes**

| | Primary Vote |
|---|---|
| David Leyonhjelm (LDP) | 3.08 per cent |
| Malcolm Roberts (ONP) | 0.00 per cent |
| Bob Day (FFP) | 2.86 per cent |

(Note that the 2016 Senate election was for the full Senate, with a much smaller quota.)

**Table 15. 2016 Established Party Victors from Tiny Primary Votes**

| | Primary Vote |
|---|---|
| NSW | |
| Arthur Sinodinos (LPA) | 0.07 per cent |
| Fiona Nash (NP) | 0.13 per cent |
| Concetta Fierravanti-Wills (LPA) | 0.02 per cent |
| John Williams (NP) | 0.05 per cent |
| Jenny McAllister (ALP) | 0.10 per cent |
| Deborah O'Neill (ALP) | 0.07 per cent |
| Doug Cameron (ALP) | 0.09 per cent |
| Victoria | |
| Stephen Conroy (ALP) | 0.09 per cent |
| Jacinta Collins (ALP) | 0.09 per cent |
| Gavin Marshall (ALP) | 0.03 per cent |
| Bridget McKenzie (NP) | 0.07 per cent |
| Scott Ryan (LPA) | 0.04 per cent |
| James Paterson (LPA) | 0.04 per cent |
| Jane Hume (LPA) | 0.03 per cent |
| Janet Rice (AG) | 0.09 per cent |
| Queensland | |
| Anthony Chisholm (ALP) | 0.06 per cent |
| Claire Moore (ALP) | 0.02 per cent |
| Chris Ketter (ALP) | 0.04 per cent |
| Matthew Canavan (LNP) | 0.08 per cent |
| James McGrath (LNP) | 0.05 per cent |
| Ian Macdonald (LNP) | 0.07 per cent |
| Barry O'Sullivan (LNP) | 0.05 per cent |
| Western Australia | |
| Glenn Sterle (ALP) | 0.06 per cent |
| Patrick Dodson (ALP) | 0.14 per cent |
| Louise Pratt (ALP) | 0.19 per cent |
| Rachel Siewert (AG) | 0.06 per cent |
| Michaelia Cash (LPA) | 0.10 per cent |
| Dean Smith (LPA) | 0.04 per cent |
| Linda Reynolds (LPA) | 0.05 per cent |
| Chris Back (LPA) | 0.03 per cent |
| South Australia | |
| Don Farrell (ALP) | 0.06 per cent |
| Alex Gallacher (ALP) | 0.03 per cent |
| Stirling Griff (NXT) | 0.01 per cent |
| Skye Kakoschie-Moore (NXT) | 0.01 per cent |
| Cory Bernardi (LPA) | 0.19 per cent |
| Anne Ruston (LPA) | 0.08 per cent |
| David Fawcett (LPA) | 0.08 per cent |
| Tasmania | |
| Helen Polley (ALP) | 0.58 per cent |
| Carol Brown (ALP) | 0.32 per cent |

| | |
|---|---|
| Catryna Bilyk (ALP) | 0.33 per cent |
| Nick McKimm (AG) | 1.82 per cent |
| Stephen Parry (LPA) | 0.59 per cent |
| Jonathon Duniam (LPA) | 0.19 per cent |
| David Bushby (LPA) | 0.38 per cent |

**Table 16. 2019 Micro-party Victors from Tiny Primary Votes**
Nil

**Table 17. 2019 Established Party Victors from Tiny Primary Votes**

| | Primary Vote |
|---|---|
| New South Wales | |
| Andrew Bragg (LP) | 0.05 per cent |
| Perin Davey (NP) | 0.06 per cent |
| Tim Ayres (ALP) | 0.04 per cent |
| Victoria | |
| Jane Hume (LP) | 0.11 per cent |
| David Van (LP) | 0.04 per cent |
| Jess Walsh (ALP) | 0.16 per cent |
| Queensland | |
| Susan McDonald (LNP) | 0.20 per cent |
| Gerard Rennick (LNP) | 0.04 per cent |
| Western Australia | |
| Slade Brockman (LP) | 0.06 per cent |
| Matt O'Sullivan (LP) | 0.11 per cent |
| Western Australia | |
| Louise Pratt (ALP) | 0.21 per cent |
| South Australia | |
| David Fawcett (LP) | 0.21per cent |
| Alex Antic (LP) | 0.06 per cent |
| Marielle Smith (ALP) | 0.10 per cent |
| Tasmania | |
| Claire Chandler (LP) | 0.48 per cent |
| Catryna Bilyk (ALP) | 0.45 per cent |

(https://results.aec.gov.au/24310/Website/SenateStateFirstPrefsByGroup-24310-NSW.htm, 29/8/2019)
(https://results.aec.gov.au/24310/Website/SenateStateFirstPrefs-24310-VIC.htm, 12/9/2019)
(https://results.aec.gov.au/24310/Website/SenateStateFirstPrefs-24310-QLD.htm, 16/9/2019
(https://results.aec.gov.au/24310/Website/SenateStateFirstPrefs-24310-WA.htm, 16/9/2019)
(https://results.aec.gov.au/24310/Website/SenateStateFirstPrefs-24310-SA.htm, 16/9/2019)
(https://results.aec.gov.au/24310/Website/SenateStateFirstPrefs-24310-TAS.htm, 16/9/2019)

**Table 18. 2022 Micro-party Victors from Tiny Primary Votes**
Nil

**Table 19. 2022 Established Party Victors from Tiny Primary Votes**

| | Primary Vote |
|---|---|
| New South Wales | |
| Jim Molan (LPA) | 0.33 per cent |
| Ross Cadell (NP) | 0.04 per cent |
| Jenny McAlister (ALP) | 0.10 per cent |
| Victoria | |
| Bridget McKenzie (LPA) | 0.11 per cent |
| Jana Stewart (ALP) | 0.08 per cent |
| Queensland | |
| Matt Canavan (LNP) | 0.39 per cent |
| Anthony Chisholm (ALP) | 0.07 per cent |
| Western Australia | |
| Glenn Sterle (ALP) | 0.08 per cent |
| Fatima Payman (ALP) | 0.11 per cent |
| Dean Smith (LPA) | 0.08 per cent |
| South Australia | |
| Andrew McLachlan (LPA) | 0.06 per cent |
| Kerryne Liddle (LP) | 0.03 per cent |
| Don Farrell (ALP) | 0.09 per cent |
| Tasmania | |
| Helen Polley (ALP) | 1.12 per cent |
| Wendy Askew (LPA) | 0.55 per cent |

(https://results.aec.gov.au/27966/Website/SenateStateFirstPrefs-27966-NSW.htm, 26/9/2022)
(https://results.aec.gov.au/27966/Website/SenateStateFirstPrefs-27966-VIC.htm, 26/9/2022)
(https://results.aec.gov.au/27966/Website/SenateStateFirstPrefs-27966-QLD.htm, 26/9/2022)
(https://results.aec.gov.au/27966/Website/SenateStateFirstPrefs-27966-WA.htm, 26/9/2022)
(https://results.aec.gov.au/27966/Website/SenateStateFirstPrefs-27966-SA.htm, 26/9/2022
(https://results.aec.gov.au/27966/Website/SenateStateFirstPrefs-27966-TAS.htm, 26/9/2022)

**Table 20. 2025 Micro-party Victors from Tiny Primary Votes**

Nil

**Table 21. 2025 Established Party Victors from Tiny Primary Votes**

| | Primary Vote |
|---|---|
| New South Wales | |
| Tim Ayres (ALP) | 0.88 per cent |
| Jessica Collins (LPA) | 0.07 per cent |
| Victoria | |
| Jane Hume (LPA) | 0.11 per cent |
| Jess Walsh (ALP) | 0.14 per cent |
| Michelle Ananda-Rajah (ALP) | 0.14 per cent |
| Queensland | |
| Susan McDonald (LNP) | 0.14 per cent |
| Corinne Mulholland (ALP) | 0.06 per cent |
| Western Australia | |
| Varun Ghosh (ALP) | 0.05 per cent |
| Matt O'Sullivan (LPA) | 0.06 per cent |
| South Australia | |
| Ann Ruston (LPA) | 0.21 per cent |
| Karen Grogan (ALP) | 0.09 per cent |
| Charlotte Walker (ALP) | 0.09 per cent |
| Tasmania | |
| Richard Colbeck (LPA) | 1.09 per cent |
| Richard Dowling (ALP) | 0.54 per cent |

(https://results.aec.gov.au/31496/Website/SenateStateFirstPrefs-31496-NSW.htm, 11/10/2025)
(https://results.aec.gov.au/31496/Website/SenateStateFirstPrefs-31496-VIC.htm, 11/10/2025)
(https://results.aec.gov.au/31496/Website/SenateStateFirstPrefs-31496-QLD.htm, 11/10/2025)
(https://results.aec.gov.au/31496/Website/SenateStateFirstPrefs-31496-WA.htm, 11/10/2025)
(https://results.aec.gov.au/31496/Website/SenateStateFirstPrefs-31496-SA.htm, 11/10/2025)
(https://results.aec.gov.au/31496/Website/SenateStateFirstPrefs-31496-TAS.htm, 11/10/2025)

From 2013 to 2025, 104 established party candidates were elected from tiny primary votes – without an echo of a shadow of a complaint. It is obvious that the campaign against group voting tickets was not based on any principle at all but on hostility to the micro-party candidates duly elected by their use.

It is argued that the existence of group voting tickets is undemocratic in that people do not know for whom they are voting and end up with preferences going to people whom they would not choose to support. This ignores the facts that all group voting tickets were available at polling stations and that no one had to vote above the line. No one had to endorse a group voting ticket. Everyone was free to vote below the line.

When a voter votes above the line, he or she is choosing one set of preferences over all others and doing so in the knowledge that his or her party has made an arrangement that it believes is in the interests of his or her party. That is a legitimate choice for the voter to make, especially given the reduction in informal votes that the introduction of group voting tickets achieved. The proportional, and thus representative, nature of the voting system was enhanced by the above-the-line voting and group voting tickets because preferences went to all candidates; i.e.,

no votes were exhausted, which they are with above-the-line optional preferences. If their party chooses to swap preferences with a party with different ideas, that is also perfectly acceptable.

It is true that choosing the party's preference allocation has the advantage of making a formal vote far easier than filling out all the preferences below the line. The answer to that problem is not to distort the single transferable vote by above-the line preferences, but to make preferences below the line optional after a certain number.

The Senate and some states have replaced multi-party group voting tickets with single-party group voting tickets; i.e., they allow voters to mark preferences above the line, which are simply votes for the group of candidates in the order that each party has chosen them rather than votes for the candidates of several parties in the order that the first party has determined is the most effective for its supporters.

A comparison of the 2013, 2016, 2019, 2022 and 2025 percentages of informal votes shows that the new system, despite claims it was to empower the voter, has reduced the percentage of voters whose votes count because it increased the percentage of informal votes, from 2.96 per cent in 2013 to 3.94 per cent (2016), 3.81 per cent (2019), 3.42 per cent (2022) and 3.45 per cent (2025) (Table 22). These are the official informal votes as the so-called savings provisions mean that votes that are informal under one section of the Electoral Act must be counted as formal under another section. Roughly 75,000 more voters had their votes not counted in 2025 than would have been the case if the informal vote percentage were the same as it had been in 2013/14. So much for the new "better" system!

**Table 22. Informal Votes**

| Percent | 2013/14 | 2016 | 2019 | 2022 | 2025 |
|---|---|---|---|---|---|
| NSW | 3.32 | 4.53 | 4.28 | 3.91 | 4.45 |
| Victoria | 3.37 | 4.20 | 4.02 | 3.52 | 3.08 |
| Queensland | 2.16 | 3.40 | 3.26 | 3.12 | 3.05 |
| WA | 2.86 | 3.35 | 3.40 | 2.91 | 2.60 |
| SA | 2.65 | 3.33 | 3.50 | 2.92 | 3.16 |
| Tasmania | 2.46 | 3.48 | 3.64 | 3.20 | 3.30 |
| ACT | 1.98 | 2.21 | 2.32 | 1.75 | 1.76 |
| NT | 2.67 | 3.33 | 3.64 | 3.08 | 3.25 |
| | 2.96 | 3.94 | 3.81 | 3.42 | 3.45 |

(https://results.aec.gov.au/17496/Website/SenateInformalByState-17496.htm, 28/8/2019)
(https://results.aec.gov.au/20499/Website/SenateInformalByState-20499.htm, 28/8/2019)
(https://results.aec.gov.au/24310/Website/SenateInformalByState-24310.htm, 28/8/2019)
(https://results.aec.gov.au/27966/Website/SenateInformalByState-27966.htm, 26/9/2022)
(https://results.aec.gov.au/31496/Website/SenateInformalByState-31496.htm, 19/9/2025)

A comparison of the 2013, 2019, 2022 and 2025 election results shows how much the move to above-the-line preferences has made the Senate more unrepresentative of the way people vote.

The distortion rate (the difference between the percentage of votes won and the percentage of seats won by groups) in the 2013 Senate election, the last fully democratic one, was 14.4 per cent, while the distortion rates in the subsequent less democratic Senate elections were 23.4 per cent (2016), 36.0 per cent (2019), 26.0 per cent (2022) and 22.1 per cent (2025) (Tables 6-10, page 6). In every case, the Coalition, the ALP and the Greens were overrepresented and the Others underrepresented. The underrepresentation of the Others was 7.7 per cent in 2013

and varied from 11.2 per cent to 18.0 per cent in the four less democratic elections. Some may argue that the votes of Others should not be aggregated because the parties and independents in that aggregation have different ideologies. If the previous system allowed them to gain representation, their differences in ideology did not matter to their voters.

The problem with a system of above-the-line preferences should be obvious: it does not treat voters equally. It discriminates between voters according to the voting method they choose and does so in a random way. The pretense that six preferences are required above the line ignores the fact that party groups do not run the same number of candidates. Thus, one set of six preferences above the line can result in preferences to 30 candidates below the line while another set of six preferences above the line can result in preferences below the line to only 12 candidates.

One voter can put 1 above the line for a party with two candidates and thus express only two preferences below the line and be counted. Another voter can put 1-6 above the line for six parties with six candidates each and thus express as many as 36 preferences below the line. Meanwhile, another voter can put 1-5 below the line, and thus express three more preferences than the first voter, yet his or her vote will not be counted.

An example from the 2025 Senate election illustrates the issue. In NSW, anyone who voted 1 above the line for Australia's Voice and 2 for the Fusion cast a formal vote, even though that 1 above the line expressed preferences for only four candidates, Emanie Samira Darwiche, Graham George, Miles Whiticker and Andrew Potts. Anyone who voted 1 above the line for the Australia's Voice only cast a formal vote which was counted towards the result, even though that 1 above the line expressed preferences for only two candidates, Emanie Samira Darwiche and Graham George. Yet, anyone who voted below the line 1 for Emanie Samira Darwiche, 2 for Graham George, 3 for Miles Whiticker and 4 for Andrew Potts cast an informal vote, even though the exact same number of preferences were expressed as by the second voter and twice as many preferences as by the third voter. It gets worse: anyone who voted below the line 1 for Emanie Samira Darwiche, 2 for Graham George, 3 for Miles Whiticker, 4 for Andrew Potts and 5 for Tim Ayres also cast an informal vote, even though more than twice as many preferences were expressed as by the second voter. This is outrageous. Those who go to the trouble of expressing preferences below the line, marking up to five numbers, do not get their votes counted, but those who put only a 1 above the line that expresses preferences for far fewer candidates do get counted. If this is not unconstitutional, it should be.

Having preferences below the line allows a voter to go 1, 2, 3 for one party, 4, 5, 6 for the next, and so on, but it also allows the voter to go 2, 3, 1 for the first party and so on. Having preferences below the line incorporates preferences above the line, but vice versa does not apply.

There is no problem whatsoever with a candidate's election to the Senate from a tiny primary vote as no one gets there until they reach the quota, 14.29 per cent. The real issue has never been the size of the initial vote. It has never been the election of the "wrong" people to the Senate. It has never been group voting tickets. It has never been the existence of above-the-line voting. The issue was the difficulty of voting below the line. It is the duty of every citizen to vote and, by the same reasoning, the duty of every citizen to vote all the preferences there can be. However, this has become unrealistic with Senate ballot papers with 100 or more candidates. The duty remains but is unenforceable.

There is no problem with above-the-line votes and group voting tickets being restored, as this reduced the informal vote and people were free to choose it (because they trusted that their party had done the best deal) or not choose it, but there is a case for restricting the number of preferences a group ticket may have to the same 12 as a formal vote below the line ought to require. That would be an incentive not to create phoney parties that last one election and are heard no more because parties would not be able to control the preferences all the way to 100.

In conclusion, the committee should recommend that the Electoral Act require at least 12 preferences for individual candidates or a 1 for a group that expressed 12 preferences, unless fewer than 12 candidates are standing.

## 4. Fixed four-year terms for the House of Representatives

Even though we are supposed to have three-year terms, we have had 48 elections since Federation. That is one every two years and seven months. The 1984 election was held only one year and nine months after the 1983 one. The 1975 election was held only one year and seven months after the 1974 one. The 1974 election was held only one year and six months after the 1972 one. The 1955 election was held only one year and seven months after the 1954 one. The 1951 election was held only one year and four months after the 1952 one.

A referendum was held in 1988 to provide for four-year terms for the House of Representatives. It was defeated, but it did not provide for fixed terms, and it replaced the fixed six-year terms for senators with unfixed maximum terms of four years, meaning that there would have been even less restraint on governments calling early elections for political advantage. Currently, calling an early election for the House risks House elections and Senate elections falling out of alignment, leaving the consequent separate Senate election as whole-country by-election in which the voters can express their displeasure with the government with absolutely no danger of removing it. Tying Senate terms to House of Representatives terms without fixing the terms provides even less restraint on the calling of early elections than we have now.

Fixed four-year terms would allow the government of the day to concentrate on governing, give people certainty and remove the advantage to the side in power to determine election dates according to partisan advantage.

In conclusion, the committee should recommend that the Constitution be amended to provide fixed four-year terms for the House of Representatives:
"28. Every House of Representatives shall continue for ~~three years from the first meeting of the House, and no longer~~, *for four years from the date of the election*, but may be sooner dissolved by the Governor-General *under special circumstances, in which case the House of Representatives elected at the following election shall serve for the remainder of the previous term only*."
The special circumstances, such as losing a vote of confidence or a calling double dissolution election, need to be defined in the Constitution.

## 5. Fixed eight-year terms for the Senate

Some argue that, if we are to have four-year fixed terms for the House, we must also have them for the Senate as continuing with six-year terms for the latter would create even more elections;

e.g., both Houses in 2028, the Senate in 2031, the House alone in 2032, the Senate alone in 2034, the House alone in 2036, the Senate alone in 2037, both Houses in 2040, and so on – seven federal elections in 12 years. This would be absurd.

Having the elections for both Houses at the same time if the terms are fixed is obviously sensible. Combined with fixed four-year terms for the lower houses in the states and fixed four-year terms for local councils, having a federal election once every four years should provide us with one year in every four free of elections. There is more to life than politics.

Whether Senate terms are four years or eight years makes no difference to the number of elections. Some argue that eight-year terms are too long, but NSW and South Australia survive with them. In fact, eight-year terms with half the senators elected at each election smooth out temporary enthusiasms. It has been said that tradition is the most democratic system of all in that it gives votes to the dead. Eight-year terms are a long way short of that, but they do provide a brake on change in so far as contentious issues will not be resolved without long consideration. If we were talking about the house of government, eight years would be intolerable, but we are not: we are talking about the house of review.

Electing half the Senate every four years smooths out temporary enthusiasms. There have been eight change-of-government elections since 1949 (Table 23). In only one case did the party that won any of those elections go on to increase its percentage of the vote at the subsequent election. In six cases, the winning party lost votes between the two elections (from 0.3 to 7.8 per cent). In the eighth case, there was no change. This shows that many voters are almost invariably disappointed in the government they have changed to and prefer it to lose office. It follows that there needs to be a restraint on spur-of-the-moment change and a time for reflection. This suggest allowing a small lag by having a Senate half of whose members were elected some time ago is a good thing.

**Table 23. 1949-2025 Election Results**
Primary vote by change-of-government winning party at initial and subsequent election

| Year | Labor | Change | Coalition | Change |
|---|---|---|---|---|
| 1949 | | | 50.3 | |
| 1951 | | | 50.3 | -0.0 |
| 1972 | 49.6 | | | |
| 1974 | 49.3 | -0.3 | | |
| 1975 | | | 53.1 | |
| 1977 | | | 48.1 | -5.0 |
| 1983 | 49.5 | | | |
| 1984 | 47.5 | -2.0 | | |
| 1996 | | | 47.3 | |
| 1998 | | | 39.5 | -7.8 |
| 2007 | 43.4 | | | |
| 2010 | 38.0 | -5.4 | | |
| 2013 | | | 45.6 | |
| 2016 | | | 42.0 | -3.6 |
| 2022 | 32.6 | | | |
| 2025 | 34.6 | +2.0 | | |

(https://en.wikipedia.org/wiki/Australian_House_of_Representatives, 1/10/2025)

The difficulty the committee faces is of the same nature as that faced by republicans. Polls showed majority support for a republic in Australia, but the referendum to have one was still defeated. In essence, the direct election republicans joined the monarchists to defeat the appointed president republicans. Had the referendum provided for a directly elected president, the appointed president republicans would have joined the monarchists to defeat the direct election republicans. In any referendum to provide fixed four-year terms for the House of Representatives and the Senate, the supporters of fixed eight-year terms for the Senate will in many cases join the opponents of fixed four-year terms for the House of Representatives and defeat the proposal. Similarly, in referendum to provide fixed four-year terms for the House of Representatives and fixed eight-year terms for the Senate, the supporters of fixed four-year terms for the Senate will in many cases join the opponents of fixed four-year terms for the House of Representatives and defeat the proposal. This is before factoring in supporters of longer terms who don't want them fixed and supporters of fixed terms who don't want them lengthened.

There is a way through this dilemma. That is to recommend the simplest change first and promise a referendum years later on the more complicated change. The initial referendum should keep the half-Senate elections, while a further referendum on halving Senate terms to four years should be promised eight or 12 years down the track, when people have had the chance to evaluate how eight-year Senate terms work. Some may argue for doing it the other way around, but no one will believe a promise that halving Senate terms now will be followed by a referendum to restore them later.

In conclusion, the committee should recommend that the Constitution be amended to provide fixed four-year terms for the Senate:
"7. The senators shall be chosen for a term of ~~six~~ *eight* years, and the names of the senators chosen for each State shall be certified by the Governor to the Governor-General."

## 6. The Senate's power to deny Supply

The Senate's deferral of Supply in 1974 and its blocking of it in 1975 have led many to demand that it lose the power over Supply. Given that the Senate, because of proportional representation, is the more representative house, this would be an undemocratic and retrograde step. It should be noted that Australian voters have rejected every referendum to undermine the Senate (the nexus one in 1967, the four simultaneous elections ones, in 1974, 1977, 1984 and 1988). It should also be noted that both major parties supported the abolition of the nexus in 1967, with opposition coming from only the DLP and a few renegade Liberals, but it was still defeated. The Australian people, particularly those in the small states, will not support downgrading the Senate.

Any attempt to remove the Senate's power over Supply would doom a referendum to introduce fixed four-year terms for the House, but having fixed terms requires a process for dealing with the denial of Supply, which is discussed in Sections 7 and 8 of this submission.

In conclusion, the committee should recommend that the Senate retain the power to deny Supply.

## 7. A referendum to break deadlocks

Currently, governments that cannot get legislation through the Senate have the option of calling a double dissolution election. This produces a dilemma. The government claims it has an election mandate and wants its promises implemented, but every senator has a mandate too – to do what he or she promised in the election. The senators' mandates and the government's mandate have equal validity. All are living up to the promises they made to their voters. They may compromise – or they may not. If they do not, the government faces the choice of risking its term in office or failing to fulfil its promise. The solution is obvious: provide an alternative to refer the disputed bill to the people. The voters will decide, but the government will not risk losing office.

In the case of a Supply bill, there is some urgency to the question. It takes time to organise and conduct a referendum. A restraint on this being used would be that, if the referendum supported Supply, the entire Senate would lose office and face an early election – again, just for the remainder of the term. If the people rejected Supply, the House of Representatives alone would face an early election – again, just for the remainder of the term.

In conclusion, the committee should recommend two new sections in the Constitution:
"*57A. Disagreement between the Houses*
*If the House of Representatives passes any proposed law other than one which appropriates revenue or moneys for the ordinary annual services of the Government, and the Senate rejects or fails to pass it, or passes it with amendments to which the House of Representatives will not agree, and if after an interval of three months the House of Representatives, in the same or the next session, again passes the proposed law with or without any amendments which have been made, suggested, or agreed to by the Senate, and the Senate rejects or fails to pass it, or passes it with amendments to which the House of Representatives will not agree, the Governor-General may put the proposed law, with any amendments which have agreed to by both the House of Representatives and the Senate to the people in a referendum. If the proposed law is affirmed by the majority of voters voting in the referendum, it shall be taken to have been duly passed by both Houses of the Parliament, and shall be presented to the Governor-General for the Queen's assent."*

*"57B. If the House of Representatives passes any proposed law which appropriates revenue or moneys for the ordinary annual services of the Government, and the Senate rejects or fails to pass it, or request amendments to which the House of Representatives will not agree, the Governor-General may put the proposed law, with any amendments which have agreed to by both the House of Representatives and the Senate to the people in a referendum. If the proposed law is affirmed by the majority of voters voting in the referendum, it shall be taken to have been duly passed by both Houses of the Parliament, and shall be presented to the Governor-General for the Queen's assent, and the Senate shall be dissolved and an election conducted for the remainder of the Senate's terms. If the proposed law is rejected by the majority of voters voting in the referendum, it shall be taken to have been not passed by both Houses of the Parliament, and shall not be presented to the Governor-General for the Queen's assent, and the House of Representatives shall be dissolved and an election conducted for the remainder of the term of the House of Representatives*."

## 8. A "pressure relief valve"

There needs to be pressure relief valve where the only way out of a political deadlock is an early election. The Constitution must make provision for these exceptional circumstances but reduce the likelihood of its being used. The best way of doing this would be to provide that any MPs or senators elected in an early election serve for the remainder of the fixed four- or eight-year term only. In other words, the fixed election dates remain force, so an opposition forcing an early election might get to be in government for only one year or six months before facing the people – if it wins the early election, that is. That is a strong disincentive.

In conclusion, the committee should recommend a new section in the Constitution:
*"28A. Dissolution of House of Representatives after a no confidence motion*

*(1) Notwithstanding Section 28, the House of Representatives may be dissolved if—*

*(a) a motion of no confidence in the Prime Minister and the other Ministers of State for the Commonwealth is passed by the House of Representatives; and*

*(b) during the period commencing on the day of the passage of the motion of no confidence and ending 8 clear days after that day, the House of Representatives has not passed a motion of confidence in the then Prime Minister and the other Ministers of State for the Commonwealth.*

*(2) Notice of a proposed motion of no confidence under subsection (1)(a) must be given at least 3 clear days before it is moved.*

*(3) After a motion of no confidence under subsection (1)(a) is passed, unless a motion of confidence is passed under subsection (1)(b), the House of Representatives may not be—*

*(a) prorogued before the end of the period specified in subsection (1)(b); or*

*(b) adjourned for a period extending beyond the end of the period specified in subsection (1)(b)."*

(based on Victorian Constitution)

## 9. Recall by petition

One argument against fixed terms is that they allow an unpopular bad government to stay in power too long. This make no sense because unpopular governments do not call early elections. Popular governments call early elections to capitalise on their always temporary popularity. Unpopular governments hang on as long as they can in the hope that things will magically turn around.

However, there is an argument to allow the people to get rid of a hopeless government as soon as possible. Again, such a step should occur in only the most extreme circumstances. So we need a mechanism that makes it possible but that also makes it very difficult. We do not want impatient oppositions bringing down governments at the drop of hat. The obvious mechanism is recall by petition, but the threshold has to be high. If the House of Representatives is to

continue to be elected from single-member electorates, all MPs should be subject to recall by a petition signed by more than 50 per cent of voters in the relevant electorate with such a measure only able to be used once in any term. Such a provision would allow the MPs of a bad government to be removed but would mean a lot of effort so would not be used lightly. This provision could cause a government to lose its majority, leading to a new government or an early election – in both cases for the rest of the fixed four-year term only.

Consistency suggest applying the same provision to senators, but it is impossible to identify which voters voted for which senator, and it would be absurd for petition signed by the majority of a state's voters, none of whom voted for the senator in question, to result in that senator being recalled. The petition would have to recall all the senators from that state or territory elected at the previous election. Even then, it would be absurd for a petition signed by even 80 per cent of the voters to recall a senator whom none of them had voted for in the first place. That suggest the recall petition would require signatures from a percentage of voters greater than all the quotas used to elect all the senators; i.,e. 85.72 per cent.

If the House of Representatives were to be elected from multi-member electorates, the same considerations would apply.

There is a situation in which an MP or a senator should be removed from parliament even without a recall petition. That is when either resigns from the party for which he or she was elected. It is a betrayal of the voter's trust for an MP or senator to change parties after an election. The situation of an MP or senator who is expelled from a party is completely different. It would be disgraceful if parties were enabled to remove MPs or senators elected by the people because they strayed from the party line. To do so would be to give power to party machines.

In conclusion, the committee should recommend three new sections in the Constitution:
"*7A. The seat of senator who resigns from the party to which he belonged upon his election shall be declared vacant immediately upon such resignation*."
"*24A. The seat of member of the House of Representatives who resigns from the party to which he belonged upon his election shall be declared vacant immediately upon such resignation*."
*"28B. Notwithstanding Section 28, any member of the House of Representatives may be recalled by a petition signed by more than 50 per cent of the voters enrolled in that district and an election conducted to fill that vacancy, provide that such recall may not occur in the first six months or the last six months of any term and may occur only once in a member's term."*
(if the House of Representatives continues to be elected from single-member electorates)

## 10. The nexus

Any proposal to increase the number of members of the House of Representatives will be opposed by those who have a very low opinion of politicians. Some would suggest one way of reducing this concern is to remove the nexus between the two Houses, as was attempted in 1967. This is a bad idea because it would reduce the say of the Senate in any joint sitting and be a betrayal of the federal compact. In practical terms, it would be defeated in a referendum by the opposition of voters in the small states. Furthermore, it would contaminate the other, worthwhile referendum questions, making their passage less likely.

In conclusion, the committee should recommend that the nexus remain.

## 11. More representation for territory voters

There is an argument that the House of Representatives needs to increase in size because of the increase in population since 1984. The usual suggestion is to increase the number of state senators to 14 per state, allowing the House of Representatives to increase by 24 members. But this is not the only possible mechanism.

Increasing the number of territory senators and fixing their terms as per state senators – six per territory, three at each election - 12 in total – would add 16 MPs to House without increasing number of state senators. Taking this approach would reduce Tasmania's disproportionate representation because of the minimum of five seats per original state, increase the possibility of third party senator from the territories, and give the Liberals a chance of winning a senator from the ACT at each election, two in total. The current system of two senators per territory was designed to that ensure territory representation, which was expected to be one government and one opposition senator always because of the high quota, would not change the balance between the government and the opposition in the Senate. This is no longer the case.

No constitutional amendment is required to increase the number of MPs or senators, but there is a real danger that doing so in conjunction with any constitutional referenda would make the passage of such referenda more difficult because the two matters would be connected in the voters' minds by opponents of the referenda. Such opponents would use the well-established public antipathy to politicians to defeat worthwhile change.

In conclusion, the committee should recommend that no change to the number of MPs or senators occur until after the referenda.

## 12. Stricter requirements for party registration and nominations

The knee-jerk reaction to the Senate having people elected to it whom other people do not like is to reduce the voters' democratic rights, via thresholds or above-the-line preferences. There are several steps that can be taken outside of the voting system itself to reduce the number of candidates without reducing voters' democratic rights.

Parties should have to be registered for at least two years to run as a group. This move would cut out phoney parties that appear for one election and then disappear. This is not to stop individuals from standing. It is to stop pretend parties.

The way to ensure parties are genuine is to ensure that they have long-term registration and a number of members (say, from a minimum of 200 to one in every 5,000 voters – from 200 in the NT in 2025 to 1,100 in NSW) registered in each state and territory in which they wish to stand. It is more sensible to relate party membership to the number of voters to allow for population changes. It is more democratic for the party to have membership in the state or territory in which it is running candidates.

Groups run more candidates than can ever be elected. This can be tackled by a sliding scale of nomination fees: $2,000 for one candidate in a Senate election (i.e., an independent not in a group) and for the first candidate in a group, $10,000 for the second candidate in a group,

$20,000 for the third candidate in a group (meaning only the Coalition and the ALP would run one as they the only two parties ever to get a third candidate elected), $40,000 for the fourth candidate in the group and $60,000 for the fifth candidate in a group. No deposit would be lost for any candidate elected, no matter their initial vote. A group of one would have to poll 4 per cent of the primary vote not to lose its deposit. A group of two would have to poll 14 per cent of the primary vote not to lose its $10,000 deposit. A group of three would have to poll 28 per cent of the primary vote not to lose its $20,000 deposit. A group of four would have to poll 42 per cent of the primary vote not to lose its $40,000 deposit. A group of five would have to poll 56 per cent of the primary vote not to lose its $60,000 deposit. The very low 4 per cent is designed not to discourage candidates from small parties competing. The other figures are set as one quota for two candidates, two quotas for three candidates, three for four and so on, ignoring the digits after the decimal point in the basic quota for simplicity's sake.

These moves would stop parties padding their ticket with people they know will never be elected and thus make voting below the line less daunting.

A similar sliding scale would apply in double dissolution elections, with cut-offs for the loss of deposits of 4, 14, 21, 28, 35, 42, 49, 56, 63, 70, 77, 84 and 91 per cent.

If the proposal for increased deposits for additional candidates is adopted, it would also be necessary to stop political parties running more than one group each as if there were not such a ban, they would run two groups of two candidates each rather than one group of four in order to reduce the deposits they would have to pay.

Nominations for each candidate would require the support of, say, one in every 20,000 voters (c750). In the case of a political party, the members could be taken to have signed the nomination form if there were sufficient of them for each candidate. If not, the deficit would have to be made up by individual signatures. In other words, a party running one candidate would need to have at least 750 members in the state or have to get signatures from other voters, while a party running four candidates would need to have at least 3,000 members in the state or have to get signatures from other voters.

In conclusion, the committee should recommend:

- that party registration require a minimum of whichever is the greater of 200 members to one member in every 5,000 voters in each state or territory;
- that nomination fees increase as the number of candidates in a group increases, starting at $2,000 for the first candidate, $10,000 for the second and so on;
- that each candidate require a unique signature from one in 20,000 voters, with each candidate of a party being treated as having signatures for the equivalent number of party members

## 13. Democratic pre-selections

In the United States of America, primaries are used to select candidates for Congress. These primaries are controlled by state law. Given the centrality of political parties to modern democracies, it is essential that the law intervene far more strictly in the operations of parties here. They are voluntary organisations, but they are essential to our democracy. Yet, factions exert control ("Factional mess leaves Labor's upper house ticket in limbo", *The Age*, 20/10/2025 - https://www.theage.com.au/politics/victoria/cookie-monster-union-how-a-

backroom-deal-for-victoria-s-upper-house-got-pushed-out-to-2026-20251009-p5n1ga.html). The law should require that all preselections be by secret ballots of enrolled voters who are party members (and enrolled voters who are members of affiliated organisations if they have any). Parties should be permitted to have their own rules about how long a person has to be a member to get a vote, how long a candidate has to be a member to seek preselection and any weighting to be applied where non-members have a vote, but the basic principle of member votes must be protected. There is a case for the Australian Electoral Commission to conduct such elections too.

In conclusion, the committee should recommend:

- that candidates for registered parties must be chosen by preselection ballots of members of that party; and members of affiliated organisations;
- that such ballots be conducted by the Australian Electoral Commission.

## 14. A website to assist to the voter

Given the concern that voters have about getting the numbers right below the line, it would be prudent for the Australian Electoral Commission to establish a website and provide an app that allowed voters to determine their own preferences. Such a site would allow voters to rank candidates and would advise them if their vote was formal or not and print any formal how-to-vote for them to take into the polling booth. It may be possible for a such checking device to be provided at each polling station to perform this task.

In conclusion, the committee should recommend:

- that. the Australian Electoral Commission produce a website and an app that would allow voters to create their own formal how-to-vote cards;
- that the AEC conduct a trial of electronic scanning of ballot papers to ensure that they are formal before they are placed in ballot boxes for voters who wish to check.

## Conclusion

Australia was once a progressive – in the true sense of the word – and innovative country. It still is in some areas – but not in politics. The members of the Joint Standing Committee on Electoral Matters have the opportunity to support bold electoral reform, to make the system more representative of voters and to make government more focussed on its job.

Alternatively, the usual short-term partisan advantage can dominate, as it did with the abolition of group voting tickets and the five previous attacks on the role of the Senate.

Let us hope against all the history of short-termism that the committee supports fixed four- and eight-year terms, the constitutional entrenchment of proportional representation and the other measures to assist voters in their duty.

**Chris Curtis**
**21/10/2025**

# Appendices

## Appendix 1: Election Method Schedule

*Election Method Schedule*

1. *A person must mark his or her vote on the ballot paper by:*
    a. *writing at least the numbers prescribed by parliament in the squares printed on the ballot paper (with the number 1 being given to the candidate for whom the person votes as his or her first preference, and the numbers 2, 3, 4 and so on being given to other candidates so as to indicate the order of the person's preference for them); or*
    b. *indicating the preferences by such other means as parliament may prescribe in addition to a.*
2. *A quota shall be determined by dividing the number of first preference votes by 1 more than the number of candidates required to be elected and by increasing the quotient so obtained (disregarding any remainder) by 1.*
3. *Any candidate who has received a number of first preference votes equal to or greater than the quota is to be declared elected.*
4. *Unless all the vacancies have been filled, the surplus votes (the difference in the number of votes received and the quota) of each elected candidate are to be transferred to candidates not already elected or excluded from the count.*
5. *Any continuing candidate who has received a number of votes equal to or greater than the quota on the completion of any transfer is to be declared elected.*
6. *If, after the counting of first preference votes or the transfer of any surplus votes of elected candidates, no candidate has, or less than the number of candidates required to be elected have, received a number of votes equal to the quota, the candidate who has the fewest votes is to be excluded and all that candidate's votes are to be transferred to the continuing candidates as prescribed by parliament.*
7. *Any continuing candidate who has received a number of votes equal to or greater than the quota on the completion of a transfer of votes of an excluded candidate is to be declared elected.*
8. *In respect of the last vacancy for which 2 continuing candidates remain, the continuing candidate who has the larger number of votes is to be elected notwithstanding that that number is below the quota.*

(derived from 114A Procedure for ascertaining number of votes for Council candidates of the Victorian Constitution
and
COMMONWEALTH ELECTORAL ACT 1918 - SECT 239 Marking of votes in Senate election)

## Appendix 2: Devaluing Some Voters by Thresholds

It is sometimes suggested that there should be a threshold below which votes would not be counted. This is to copy a feature from the inferior party-based lists systems such as in Germany or New Zealand to the superior candidate-based single transferable vote system used

throughout Australia. To eliminate from the count any independent candidate or all the candidates of a group that failed to win a set percentage of the primary vote would be a disgrace, even if the preferences of those candidates were still counted. This proposal is profoundly undemocratic. That it is so is on plain display in the wording for the number two and number three candidates of the major parties and of the Greens who do not secure the set percentage are not to be eliminated.

Under the single transferable vote, all votes are equal. The vote of someone who supports a minor candidate is not of less value than the vote of someone who supports a major candidate. That voter is entitled to have his or her vote remain in the count until the end. To exclude it or discount it or remove it out of sequence because it went to a minor party candidate is the antithesis of democracy.

It is also an infringement of the democratic rights of other voters to have candidates excluded because they fall below a certain threshold as those other voters may prefer them to others allowed to remain in the race and yet would be denied the right to have their true preferences counted. To eliminate the second-lowest because of an arbitrary threshold would distort the result.

The party system has been grafted onto the STV system. Years ago, Tasmanians understood the full power of the Senate voting system. In 1949, they elected the No. 4 Liberal candidate before the No. 1 Liberal candidate and the No. 4 Labor candidate before the No. 3 Labor candidate.

If anyone suggested a threshold for single-member seats, it would be immediately obvious that it was undemocratic. One suggested Senate threshold for a six-member seat is 4 per cent. The equivalent threshold for a single-member seat would be 24 per cent. No one has yet suggested that we deny the right of a candidate with 24 per cent of the vote to stay in the race for a House of Representatives seat. Those who say no one could ever win from such a low vote should look at the 1972 result in the seat of McMillan, in which the winning candidate scored a primary vote of 16.6 per cent. The equivalent House of Representatives threshold to a Senate threshold of 5 per cent would be 30 per cent, but no one has yet suggested that we deny the right of a candidate with 30 per cent of the vote to stay in the race for a House of Representatives seat.

There would be nothing undemocratic even for a person to win a seat from an initial zero per cent. No one wins a Senate seat until they reach a quota – 14.29 per cent for everyone. The vote they start on is immaterial, as is whether or not they get their preferences from their own party or another one. The micro-party candidates got around 20 per cent of the vote in every state in 2013, so it was perfectly democratic that they ended up with a senator from every state. If they had scored 5 per cent in total, no number of preference swaps would have seen any of them elected. If they had scored 5 per cent in total and received preferences or surplus votes from major parties, that would simply show that those micro-party candidates were preferred at that stage of the count to other candidates still in the race and would be perfectly legitimate and democratic.

## Appendix 3: Devaluing Most Voters by Dividing States into Electorates

It is sometimes suggested that each state be divided into six Senate electorates. This would make the Senate highly unrepresentative. It would wipe out the Greens. Some would say this would be poetic justice given the Greens' successful campaign to change the rules to wipe out

the micro-parties. However, poetic justice isn't justice. The Greens voters are as entitled to representation as the micro-party voters that the Greens treated so unjustly.

It might be argued that the Senate representation is unequal already in that each state has the same number of senators despite huge variations in population. There are two answers to this. First of all, it is a constitutional requirement and the price of federation. Secondly, the differences in party support among the states are not so great and certainly insignificant when compared with the differences in party support among different parts of each state.

## Appendix 4: The Maths of Compulsory Preferences

The numbers of required below-the-line preferences for the Senate and the Victorian Legislative Council suggest there is a belief that there is some relationship between that number and the number of seats to be filled. This is not so. It's as if people think that, if there are 12 seats to be filled, as in a double dissolution election, voters are voting for 12 senators and, if there are five seats to be filled, as in the Legislative Council, voters are voting for five MLCs. They are not. In each case, voters are voting for one senator or one MLC. Their vote may move from one candidate to another during the count, but it elects at the most only one person, not five, not 12.

An alternative explanation is the belief that the proportion of votes that exhausts is a consequence of the number of seats to be filled; i.e., if there are 12 seats to be filled, having 12 compulsory preferences rather than five will necessarily result in fewer votes exhausting while, if there are five seats to be filled, having five compulsory preferences rather than three will necessarily result in fewer votes exhausting. This is not so. The proportion of votes that exhaust is determined by the number of candidates, not the number of seats; i.e., whatever the number of compulsory preferences, fewer votes will exhaust if there are 20 candidates rather than 40.

It would require a complex mathematical exercise to fully explain the point. The committee could commission one from the Australian Electoral Commission. It has real-world data from several elections with different numbers of candidates. It just needs to reprogram its computers so that the votes are recounted as if there were five or 10 positions to be filled and, in each case, as if exactly five or 10 preferences were marked by everyone.

In the meantime, we have to rely on an explanation from mathematical principles. If there are five positions to be filled and 20 candidates, then voters who mark five preferences will each have 15 candidates unmarked and thus potentially 15 candidates not on a quota but whose voters have exhausted their preferences. If there are five positions to be filled and 30 candidates, then voters who mark five preferences will each have 25 candidates unmarked and thus potentially 25 candidates not on a quota but whose voters have exhausted their preferences. By contrast, if there are ten positions to be filled and 20 candidates, then voters who mark five preferences will still each have only 15 candidates unmarked and thus potentially only 15 candidates not on a quota but whose voters have exhausted their preferences. Similarly, if there are ten positions to be filled and 30 candidates, then voters who mark five preferences will each have 25 candidates unmarked and thus potentially 25 candidates not on a quota but whose voters have exhausted their preferences. The number of candidates who miss out on preferences increases with the number of candidates running not the number of positions to be filled. It follows that the more candidates there are, the more votes will be exhausted.